

Court No.35

Civil Misc. Writ Petition No.53288 of 2009
Rajesh Kumar Vs. U.P. Power Corporation Ltd. & Anr.

Hon'ble Sunil Ambwani, J.
Hon'ble Virendra Singh, J.

Heard learned counsel for the petitioner. Shri H.P. Dubey has accepted notice on behalf of respondents.

A first information report of the theft of electricity under Section 135 of the Electricity Act was lodged against the petitioner and many other persons using domestic connection in their shops for commercial purposes. A provisional assessment was made to which the petitioner filed objections but that without deciding the petitioner's objections and making final assessment the respondents have initiated recovery of Rs.40856/- from the petitioner and recovery charges.

Paragraph 8.1 (b) of the U.P. Electricity Supply Code, 2005 provides for making final assessment in cases of theft before the recovery can be initiated. The relevant paragraphs are quoted as below:-

“8.1 (b) Hearing

(ii) No theft case shall be booked for mere breakage of window glass or old seal of the energy meter. In such cases, if the average monthly consumption pattern for last one year is reasonably uniform as the assessed consumption (monthly), and there is no other prima facie evidence of theft/ UUE found at the consumer premises, no further proceedings shall be taken for theft/ UUE of electricity and the decision shall be communicated to the consumer under proper receipt within 7 working days of the date of inspection, and connection shall be restored through original meter after proper checking/ resealing. The contents of such report commending for dropping the case shall be communicated to the Special Court within a copy to the police station where the FIR was lodged.

(iii) If the Assessing Officer of the licensee suspects that theft of Electricity has taken place (as defined under Section 135 of the Act), he will serve the provisional assessment bill along with show cause notice to the consumer for hearing, giving 15 working days, under proper receipt. The notice shall invite objections in writing from the consumer, if any, against the charges and provisional assessment and require the presence of the consumer to answer to all the charges imposed by the licensee.

(iv) If, after hearing, the authorized officer finds that a case of theft has been established, the assessment shall be done for the energy consumption for past period as per the assessment formula given in Annexure-6.3 on 1.5 (one and a half) times the rates as per applicable normal tariff to the purpose for which the energy is abstracted, used or consumed or wasted or diverted, whichever is higher and demand

and collect the same by including the same in a separate bill. This is in addition to any civil/ criminal proceedings that may be instituted as provided by the Act, and described in clause 8.2.

(vii).

(v) A copy of the order shall be served to the consumer under proper receipt and in case of refusal to accept the order or in absence of the consumer, shall be served on him under Registered Post/ Speed Post. The Authorized officer may extend the last date of payment or approve the payment to be made in installments on a consideration of the financial position and other conditions of the licensee. The amount, the extended last date and/ or time schedule of payment/ installments should be clearly stated in the speaking order.”

Shri H.P. Dubey states that the provisional assessment was made under paragraph 8.1 of the UP Electric Supply Code, 2005 and that no objections were filed on which the provisional assessment was sent to be recovered.

Shri H.P. Dubey fairly admits that final assessment was not made. The provisional assessment was served and that the petitioner was given sufficient opportunity to file his reply in writing or to be heard in person.

The provision of paragraph 8.1 (b) of the U.P. Electricity Supply Code, 2005 provides for making final assessment, even if, the objection has not been filed. It is necessary to make final assessment of recording findings that provisional assessment was served upon consumer. The insistence of recovering the amount without making any final assessment is violative of procedure prescribed under the Code.

The writ petition is consequently **allowed** with directions that the recovery in pursuance of recovery notice dated 4.9.2009 of Rs.40,856/- of the electricity on account of theft of electricity shall remain in abeyance until final assessment is made against the petitioner.

Dt.13.10.2009

SP/